



ITEM NO.8

COURT NO.12

SECTION II-C

S U P R E M E C O U R T O F I N D I A
RECORD OF PROCEEDINGS

Petition(s) for Special Leave to Appeal (Crl.) No(s). 2018/2024

[Arising out of impugned final judgment and order dated 02-11-2023 in CRRP No. 625/2021 passed by the High Court of Karnataka at Bengaluru]

25054914

M/S. JDA PROJECTS & ANR.

Petitioner(s)

VERSUS

M/S. JAMNADAS MORAIEE FINANCE PVT LTD

Respondent(s)

Date : 26-03-2025 This petition was called on for hearing today.

CORAM :

HON'BLE MR. JUSTICE SUDHANSHU DHULIA
HON'BLE MR. JUSTICE K. VINOD CHANDRAN

Certified to be true copy
Assistant Registrar (Judl.)
2020
Supreme Court of India

For Petitioner(s) Mr. Kapil Sibal, Sr. Adv.
Mr. Brijesh Kalappa, Adv.
Mr. Korada Pramod Kumar, Adv.
Ms. Divya Nair, Adv.
Ms. Rupali Samuel, Adv.
Mr. Ankolekar Gurudatta, AOR

For Respondent(s) Mr. Dhruv Mehta, Sr. Adv.
Mr. Sandeep Bajaj, Adv.
Mr. Vipul Jai, Adv.
Ms. Vanshika Rana, Adv.
Mr. Soayib Qureshi, AOR

UPON hearing the counsel the Court made the following
O R D E R

Heard Mr. Kapil Sibal and Mr. Dhruv Mehta, learned senior counsel appearing for the contesting parties. After some time, both the parties have arrived at a settlement and agreed not to pursue the matter further on the following terms:-

"1. The subject property which is situated at Mysuru, Karnataka shall henceforth be under the receivership for which we presently appoint Principal District Judge, Mysuru, Karnataka as the Receiver.



2. The subject property will be sold either as one whole or in parts as expeditiously as possible and definitely within a period of six months from today but not beyond nine months from today in any case.

3. Out of the proceeds from sale, the petitioner(s) will pay an amount of Rupees ten crore twenty five lakhs along with the simple interest at the rate of 11% per annum which shall be calculated from 11.01.2023 till date of payment.

4. The proceeds of sale shall be deposited before the Receiver i.e. the Principal District Judge, Mysuru, Karnataka; who shall disburse it to the respondent till the amounts herein agreed upon are satisfied.

5. Both petitioner(s) and respondent shall sign the sale deeds along with the endorsement of the Receiver.

6. After the amounts due to the respondent are fully paid-up, the respondent shall execute a special power of attorney to the petitioner(s); with respect to the balance properties; if any.

7. We also make it clear that the actual sale will be instituted by the petitioner(s). The entire procedure followed by the petitioner(s) shall be duly informed to the Receiver and we further make it clear that 11% per annum interest shall be calculated on the aforesaid amount till it is actually paid.

8. The present petition is disposed of in the above terms, however, subject to liberty to revive this petition if there is any impediment to any of the parties.



pending application(s), if any, shall stand disposed of.

(NIRMALA NEGI)
ASTT. REGISTRAR-cum-PS

(RENU BALA GAMBHIR)
ASSISTANT REGISTRAR





9555/201

Case No. of Court 3
Total Cost 10/-
(a) application filed on 14/10/11
(b) date given to return copy 14/10/11
(c) date on which copy is to be returned to the applicant or sent to the applicant 14/10/11

Branch Office
Supreme Court of India

SEALED IN MY PRESENCE